

Deo Dutt Kumar v. Purvanchal Vidyut Vitaran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 27 February 2024 · 2024:AHC:34150-DB · WRIT - C No. - 1361 of 2024 · **Writ disposed; petitioner relegated to Clause 6.5; demand stayed pending speaking order.**

HEADNOTE

A consumer challenged a demand for electricity dues said to arise from a mistake in a previously issued bill. Counsel agreeing that the dispute could be decided under Clause 6.5 of the Electricity Supply Code, 2005, the High Court relegated him to that remedy, directed a speaking order preferably within three weeks if an objection was filed, and stayed enforcement of the demand until then. Amounts already deposited were to abide the Clause 6.5 decision.

FACTUAL SUMMARY

Deo Dutt Kumar filed a writ in the Allahabad High Court against Purvanchal Vidyut Vitaran Nigam Limited and three others. He assailed a communication dated 16 May 2023 by which respondent No. 3 demanded payment of electricity dues, saying there had been a mistake in a bill previously issued. After the matter was listed as fresh, it came up for disposal. Counsel for both sides appeared. The consumer asked the Court to set aside the demand; the correctness of the revised dues was not tried on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection under clause 6.5

HOLDING

Counsel not disputing that the demand arising from an alleged mistake in a previously issued bill could be decided under Clause 6.5 of the Electricity Supply Code, 2005, the Court relegated the petitioner to that remedy. If an objection is filed under Clause 6.5, respondent No. 3 shall decide it by a speaking order in accordance with law, preferably within three weeks, and shall not enforce the impugned demand until then. Amounts already deposited pursuant to the demand will abide the Clause 6.5 decision. The writ petition was disposed of. ¶ 2-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ against a demand said to correct a mistake in a prior electricity bill was treated as a Clause 6.5 objection for the executive engineer (respondent No. 3), not a merits adjudication in writ. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CORRECTED ELECTRICITY DUES ARISING FROM THE ALLEGED MISTAKE IN THE PREVIOUSLY ISSUED BILL WERE PAYABLE

Merits left to the Clause 6.5 authority. ¶ 2-3